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Case Number: 25TRCV00388 Hearing Date: August 21, 2026 Dept: 5

JORGE LOPEZ VILLALOBOS

;

Plaintiff,

vs.

COSTCO WHOLESALE
CORPORATION

;

Defendant.

Case

No.:

25TRCV00388

Hearing

Date:

August
21, 2026

Time:

1:30 p.m.

[tentative]

Order RE:

(1)

defendant

COSTCO WHOLESALE CORPORATION'S MOTION FOR PROTECTIVE ORDER

(2)

DEFENDANT

COSTCO WHOLESALE CORPORATION'S REQUEST FOR MONETARY SANCTIONS

(3)

PLAINTIFF

Jorge Lopez Villalobos' request for monetary sanctions

MOVING PARTY: Defendant,

Costco Wholesale Corporation

RESPONDING PARTY: Plaintiff, Jorge Lopez Villalobos

(1)

Defendant

Costco Wholesale Corporation's Motion for Protective Order is GRANTED IN PART pursuant to Code of Civil Procedure sections 2019.030 and 2025.420.

(2)

Defendant

Costco Wholesale Corporation's Request for Monetary Sanctions is DENIED pursuant to Code of Civil Procedure sections 2023.010 and 2025.420.

(3)

Plaintiff

Jorge Lopez Villalobos' Request for Monetary Sanctions is DENIED pursuant to Code of Civil Procedure sections 2023.010, 2023.030, and 2025.420.

The Court considers the moving

papers filed on April 22, 2026, the opposition brief filed on June 9, 2026, and

the reply brief filed on June 12, 2026.

BACKGROUND

Factual Background

On February 4, 2025, plaintiff Jorge Lopez Villalobos ("Plaintiff") filed the Complaint against defendants Costco Wholesale Corporation ("Defendant") and DOES 1 through 25. The Complaint includes two causes of action: (1) Premises Liability and (2) General Negligence.

On March 13, 2025, Plaintiff filed an amendment to the complaint, adding Johanna Diaz as a defendant.

On April 14, 2025, Plaintiff served Defendant with a series of discovery requests, including form interrogatories, thirty-five (35) special interrogatories, thirty-five (35) requests for admission, and sixty-five (65) requests for production. (Declaration of Jessica Ortega ("Ortega Decl."), ¶ 3.) Defendant subsequently responded and provided supplemental responses on April 10, 2026. (Ortega Decl., ¶¶ 4-5.) Furthermore, Defendant consented to produce certain documents, contingent upon a protection order. (Ortega Decl., ¶ 6.)

On April 3, 2026, Plaintiff served Defendant with the Notice of Taking Deposition of Costco Wholesale Corporation's Employee Person Most Qualified ("PMQ") and Notice for Production of Documents at Deposition, scheduling the deposition for April 16, 2026. (Ortega Decl., ¶ 7, Exh. 1.) This deposition notice comprised fifty (50) categories and thirty-two (32) requests for the production of documents. (Ortega Decl., ¶ 7, Exh. 1.)

On April 10, 2026, Defendant's counsel issued a meet-and-confer letter to Plaintiff's counsel to address perceived deficiencies or unreasonable requests related to the categories and document requests. (Ortega Decl., ¶ 9, Exh. 2.) On April 13, 2026, Defendant served an objection to the deposition notice, outlining its reasoning. (Ortega Decl., ¶ 10, Exh. 3.)

On the same day, Plaintiff's counsel responded to the meet-and-confer letter, arguing that Defendant's objections were meritless and boilerplate. (Ortega Decl., ¶ 11, Exh. 4.)

Additionally, Plaintiff requested that Defendant specify which categories it was willing to designate a PMQ for and which it would not. (Ortega Decl., ¶ 11, Exh. 4.)

On April 14, 2026, Defendant's counsel responded, indicating that they felt compelled to file this motion, as Plaintiff's counsel had characterized their objections as meritless and boilerplate without offering any proposal to limit the scope of the deposition categories to those pertinent to the case. (Ortega Decl., Exh. 4.)

On April 15, 2026, Plaintiff's counsel responded, expressing Plaintiff's willingness to continue the deposition and to divide it into multiple sessions, contingent upon mutual agreement. (Declaration of Avetis Nalbandyan ("Nalbandyan Decl."), ¶¶ 11-12, 14, Exh. B.) Additionally, Plaintiff's counsel reiterated the request for Defendant to clarify which categories it intended to produce a witness for and which categories it contested. (Nalbandyan Decl., ¶¶ 13-14, Exh. B.) However, Defendant's counsel did not provide a response and instead served this motion on April 15, 2026. (Nalbandyan Decl., ¶¶ 15, 17, Exh. C.)

On May 20, 2026, the parties executed a Stipulation and Protective Order. (Nalbandyan Decl., ¶¶ 19-20, Exh. D.) Subsequently, the Court signed the stipulation on June 26, 2026.

LEGAL STANDARD

"Any party may obtain discovery ... by taking in California the oral deposition of any person, including any party to the action. The person deposed may be a natural person, an organization such as a public or private corporation, a partnership, an association, or a governmental agency." (Code Civ. Proc., § 2025.010.)

Protective orders are authorized by several code sections. A protective order may be issued under Code of Civil Procedure section 2025.420 to prevent or otherwise limit the scope and means of taking a deposition. The court may issue a protective order upon a showing of good cause, such as to prevent unwarranted annoyance, embarrassment, oppression, or undue burden and expense. (Code Civ. Proc., § 2025.420, subd. (b).) To establish good cause, the party seeking the

protective order must show that the burden involved in the deposition proceeding outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. (Emerson v. Electric Co. v. Superior Court (1997) 16 Cal.4th 1101, 1110.) Finally, prior to making such a motion, the moving party must attempt to informally resolve the issue and attach a declaration pursuant to Code of Civil Procedure section 2016.040. (Code Civ. Proc., § 2025.420, subd. (a).)

Additionally, “[t]he court shall restrict the frequency or extent of use of a discovery method provided in Section 2019.010 if it determines either of the following: ¶ (1) The discovery sought is unreasonably cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome, or less expensive.

¶ (2) The selected method of discovery is unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation.” (Code Civ. Proc., § 2019.030, subd. (a).) “The court may make these determinations pursuant to a motion for a protective order by a party or other affected person. This motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2019.030, subd. (b).)

Sanctions are mandatory against the party or attorney who unsuccessfully makes or opposes a motion for a protective order unless the party acted with substantial justification or the circumstances make imposition of sanctions unjust. (Code of Civ. Proc. §§ 2019.030, subd. (c), 2025.420 subd. (h).) The unsuccessful party bears the burden of demonstrating substantial justification. (Doe v. United States Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.) A motion or opposition is substantially justified where it is grounded in both law and fact. (Padron v. Watchtower Bible & Tract Society of New York, Inc. (2017) 16 Cal. App. 5th 1246, 1269.)

Furthermore, under Code of Civil Procedure section 2023.030, subdivision (a), “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. The court may also impose this

sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2023.030, subd. (a).) “Misuses of the discovery process include ... ¶ (d) Failing to respond or to submit to an authorized method of discovery. ... ¶ (h) Making or opposing, unsuccessfully and without substantial justification, a motion to compel or to limit discovery. ¶ (i) Failing to confer or to attempt to confer, in person, by telephone, or by videoconference with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, if the section governing a particular discovery motion requires the filing of a declaration stating facts showing that an attempt at informal resolution has been made.” (Code Civ. Proc., § 2023.010, subs. (d), (h)-(i).)

MEET AND CONFER REQUIREMENT

Defendant was required to meet and confer with Plaintiff before filing this motion. (Code Civ. Proc., §§ 2019.030, subd. (b), 2025.420, subd. (a).) Code of Civil Procedure section 2016.040 states that a meet and confer declaration “in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040.) “The parties must present to each other the merits of their respective positions with the same candor, specificity and support during informal negotiations as during the briefing of discovery motions. Only after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a ‘sincere’ effort to resolve the matter.” (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1293-1294, quoting Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1435.)

On April 10, 2026, Defendant's counsel issued a meet-and-confer letter to Plaintiff's counsel to address perceived deficiencies or unreasonable requests related to the categories and

document requests. (Ortega Decl., ¶ 9, Exh. 2.) On April 13, 2026, Defendant served an objection to the deposition notice, outlining its reasoning. (Ortega Decl., ¶ 10, Exh. 3.)

On the same day, Plaintiff's counsel responded to the meet-and-confer letter, arguing that Defendant's objections were meritless and boilerplate.

(Ortega Decl., ¶ 11, Exh. 4.)

Additionally, Plaintiff requested that Defendant specify which categories it was willing to designate a PMQ for and which it would not. (Ortega Decl., ¶ 11, Exh. 4.)

On April 14, 2026, Defendant's counsel responded, indicating that they felt compelled to file this motion, as Plaintiff's counsel had characterized their objections as meritless and boilerplate without offering any proposal to limit the scope of the deposition categories to those pertinent to the case.

(Ortega Decl., Exh. 4.)

On April 15, 2026, Plaintiff's counsel responded, expressing Plaintiff's willingness to continue the deposition and to divide it into multiple sessions, contingent upon mutual agreement. (Nalbandyan Decl., ¶¶ 11-12, 14, Exh. B.) Additionally, Plaintiff's counsel reiterated the request for Defendant to clarify which categories it intended to produce a witness for and which categories it contested. (Nalbandyan Decl., ¶¶ 13-14, Exh. B.) However, Defendant's counsel did not provide a response and instead served this motion on April 15, 2026. (Nalbandyan Decl., ¶¶ 15, 17, Exh. C.)

Considering the somewhat antagonistic relationship based on their emails, the Court finds that Defendant adequately met and conferred before filing this motion.

DISCUSSION

Defendant moves for a protective order, seeking relief from its obligation to produce a PMQ concerning fifty (50) categories and to provide documents in response to thirty-two (32) requests. (Motion, pp. 5:15-6:2.) Defendant asserts that: (1) “the PMQ categories are cumulative, duplicative, and seek information already

obtained through discovery[;]" (2) "the deposition notice improperly seeks confidential and private employee information[;]" (3) "the deposition notice improperly seeks confidential and sensitive information regarding [Defendant's] surveillance system[;]" and (4) "the deposition notice improperly seeks privileged, overbroad, and irrelevant testimony[;]" (Motion, pp. 11:12-13, 13:4-5, 14:20-21, 16:6-7.)

Mootness

From the outset, the Court finds Plaintiff's contention that "the executed protective order and subsequent document production have rendered much of the motion moot[;]" (Opp., p. 10:27-28.) unpersuasive.

The Court observes that Plaintiff fails to articulate how the executed stipulation and subsequent document production render much of the motion moot. Although Plaintiff contends that the production of documents undermines the basis of the motion and illustrates the necessity for PMQ testimony, no explanation is provided as to why this would result in the motion being moot. (Opp., p. 11:7-28.) Additionally, while Plaintiff argues that the stipulation alleviates Defendant's confidentiality concerns, there is again a lack of clarity regarding why this would render the motion moot. (Opp., p. 12:1-8.) Rather, Plaintiff appears to be presenting arguments for the denial of the motion.

As such, the Court does not find the motion to be moot.

Requests for Production

From the outset, the Court notes that Defendant fails to provide a legal justification as to why any of the requested documents should not be produced. Consequently, the Court will not impose any limitations on the production of these documents.

Cumulative, Duplicative, and Information
Already Obtained Through Discovery

Categories No. 1-3

Defendant contends that Categories

Nos. 1 through 3, which address policies and procedures regarding the documentation of the incident through photographs, the identification of the individual designated to take such photographs, and the identity of the individual who actually took the photographs, are neither relevant nor necessary. (Motion, p. 11:13-18.) Defendant contends that it has already provided all pertinent photographs and argues that these categories do not influence the case or prove or disprove any fact of consequence. (Motion, p. 11:19-27.)

The Court concurs. The intent of these requests is unclear, particularly given that the Defendant has provided the pertinent photographs, and how these categories may contribute to Plaintiff's case. Furthermore, the Court notes that Plaintiff does not offer any substantive analysis to justify these requests.

Consequently, the Court finds that Defendant is not obligated to produce a PMQ concerning Categories Nos. 1 through 3.

Categories No. 4, 5, 6, 7, 11, 45, and 46

Defendant contends that Categories

Nos. 4, 5, 6, 7, 11, 45, and 46, which seek testimony regarding Defendant's internal policies and procedures related to floor maintenance, inspections, hazardous recognition, record preservation, and incident investigation, are not relevant as "[t]hese categories have nothing to do with a signing tipping over and are overbroad and seek-high level corporate policies unrelated to the" incident. (Motion, pp. 11:28-12:4.)

Here, Categories Nos. 4, 6, and 11 specifically pertain to the floor where the incident took place, rendering them irrelevant to the case, as the matter involves a billboard display that fell and struck Plaintiff. However, the remaining categories extend beyond flooring issues; they also address the inspection of the location for potential hazards, as well as the investigation and reporting of the incident. Thus, the Court finds that Categories 5, 7, 45, and 46 are relevant to Plaintiff's case.

Consequently, the Court finds that Defendant is not obligated to produce a PMQ concerning Categories Nos.

4, 6, and 11.

Categories No. 10, 13, and 14

Defendant contends that Categories Nos. 10, 13, and 14, which seek testimony regarding the timing of inspections, floor walks, and sweeps conducted in the four hours prior to the incident, are duplicative, irrelevant, and unnecessary, as Defendant has already produced the Daily Floor Walk or Safety Inspection for May 1, 2023, the date of the incident. (Motion, p. 12:15-23.)

Here, the categories in question are not duplicative, as they seek different types of information. However, Category No. 13 is irrelevant. It exclusively requests information related to floor sweeps. The remaining categories focus on inspections conducted in the area prior to the incident and are not limited to sweeping, making such information pertinent.

Furthermore, the Court emphasizes that the Daily Floor Walk or Safety Inspection for May 1, 2023, does not absolve Defendant of its obligation to produce a PMQ. Plaintiff will likely require a deponent to discuss this document.

Consequently, the Court finds that Defendant is not obligated to produce a PMQ concerning Category No. 13.

Categories Nos. 38 -44

Defendant contends that Categories Nos. 38 through 44, which seek testimony regarding the billboard display, are unnecessary. It claims these categories “are duplicative of written discovery” and states that it “has already produced all responsive information in its possession, custody, or control.” (Motion, p. 12:26-28.)

Here, the Court notes that Defendant has not submitted the discovery documents for the Court’s review to confirm whether they are indeed responsive, thus making it impossible to determine if the categories are truly duplicative.

Confidential and Private Employee
Information

Categories Nos. 8, 9, and 12

Defendant contends that Categories
Nos. 8, 9, and 12, which seek the identities of employees responsible for
conducting daily floor walks, safety inspections, or floor sweeps on the date
of the incident, are duplicative, irrelevant, confidential, and unnecessary, as
Defendant has already produced the Daily Floor Walk or Safety Inspection for
May 1, 2023. (Motion, p. 13:6-22.)

Here, the categories in
question are not duplicative, as they seek different types of information. However, Category No. 12 is irrelevant. It exclusively
requests information related
to floor sweeps. The remaining categories
focus on inspections conducted in the area prior to the incident and are not
limited to sweeping, making such information pertinent.

Furthermore, the Court
emphasizes that the Daily Floor Walk or Safety Inspection for May 1, 2023, does
not absolve Defendant of its obligation to produce a PMQ. Plaintiff will likely require a deponent to
discuss this document.

Lastly, Defendant's claim that
"these requests implicate significant privacy and confidentiality concerns" lacks
persuasiveness, as Defendant does not present any relevant statutes or case law
to substantiate that the identities of the employees constitute confidential
information not subject to disclosure.

Consequently, the Court finds
that Defendant is not obligated to produce a PMQ concerning Category No. 12.

Categories Nos. 15-20

Defendant contends that Categories
Nos. 15 to 20, which seek the identities, work schedules, and job
responsibilities of the store manager and assistant store manager at the
location in question on the date of the incident, are overly broad, irrelevant,

and unnecessary, as Defendant has already provided these individuals' names. (Motion, pp. 13:23-14:1.)

Here, given that Defendant has already disclosed the identities of the store manager and assistant store manager, Categories Nos. 15 and 18 are deemed unnecessary. However, Defendant has not supplied information regarding their work schedules and job duties. The Court finds such information relevant. These individuals may have been present on the premises at the time of the incident; may have witnessed the incident; or may have been involved in the display of the billboard. Additionally, the Court observes that these requests are not overly broad.

Consequently, the Court finds that Defendant is not obligated to produce a PMQ concerning Categories Nos. 15 and 18.

Categories No. 47

Defendant contends that Category No. 47, which seeks the identities of all individuals involved in investigating the incident, is unnecessary, as Defendant "has already identified all known individuals with knowledge of the incident in response to Form Interrogatory No. 12.1[.]" (Motion, p. 14:7-8.) True. This information has already been disclosed.

Consequently, the Court finds that Defendant is not obligated to produce a PMQ concerning Category No. 47.

Confidential and Sensitive Information
Regarding Surveillance System

Categories Nos. 25-37

Defendant contends that Categories Nos. 25 through 37, which seek information regarding surveillance video policies, camera locations, the number of cameras, preservation procedures, staffing authorizations to retain footage, and inquiries into whether the surveillance cameras captured the incident or if the incident should have been recorded, are duplicative, irrelevant, and unwarranted. (Motion, pp. 14:26-16:2.)

Here, the categories in question are not duplicative; rather, they seek distinct types of information. The Court finds Category No. 27 to be unwarranted, as Defendant has already confirmed that no surveillance footage exists. (Motion, p. 14:26-27.)

Yet, the Court recognizes that several of the remaining categories are relevant and warranted. As Plaintiff asserts, certain requested categories "bear directly on notice, incident investigation, ... and potential spoliation issues." (Opp., p. 15:17-18.) Nonetheless, the Court will limit the categories to those related to cameras capable of recording the incident.

Consequently, the Court finds that Defendant is not obligated to produce a PMQ concerning Categories Nos. 27, 31 through 33, and 35.

Privileged, Overbroad, and Irrelevant
Testimony

Categories Nos. 48-50

The defendant contends that Categories Nos. 48 through 50, which seek information regarding the outcome of any investigations into the incident, the cause of the incident, and the training received by employees involved in any investigation, are overly broad, seek information protected by attorney-client privilege and the work product doctrine, are speculative and irrelevant, and involve legal conclusions. (Motion, p. 16:8-21.)

Here, the categories are not overly broad, and Defendant does not provide an explanation for this claim. Regarding the attorney-client privilege and the work-product doctrine, Defendant does not present a legal analysis explaining why each category is protected, nor does it cite any supporting statutes or case law. Consequently, the Court finds this argument unconvincing.

The Court determines that Category No. 48, which requests information related to the cause of the incident, does involve speculation and legal conclusions rather than factual testimony.

However, the Court finds the Categories

Nos. 49 and 50 are relevant. Such information will provide Plaintiff with greater insight into what Defendant discovered during its investigations and whether those who conducted the investigations were adequately trained, which could influence their findings.

Consequently, the Court finds that Defendant is not obligated to produce a PMQ concerning Category No. 48.

Categories Nos. 21-24

The defendant contends that Categories Nos. 21 through 24, which seek the identities of individuals who assisted in responding to Plaintiff's discovery requests, are excessively broad, lacking in specificity, not proportional to the case's needs, and irrelevant. (Motion, p. 16:22-27.)

Here, this information is irrelevant. Plaintiff does not provide sufficient rationale for its necessity. Consequently, the Court finds that Defendant is not obligated to produce a PMQ concerning Categories Nos. 21 through 24.

Requests for Monetary Sanctions

Both parties request monetary sanctions against one another. (Motion, pp. 17:11-18:14; Opp., pp. 17:11-18:15.)

However, based upon the partial ruling, imposition of sanctions on either party is not warranted. As such, the respective requests for monetary sanctions are DENIED.

ORDERS

1)

Defendant

Costco Wholesale Corporation's Motion for Protective Order is GRANTED IN PART with respect to Categories Nos. 1 through 4, 6, 11 through 13, 15, 18, 21 through 24, 27, 31 through 33, 35, 47, and 48.

2)

Defendant

Costco Wholesale Corporation's Request for Monetary Sanctions is DENIED.

3)

Plaintiff

Jorge Lopez Villalobos' Request for Monetary Sanctions is DENIED.

4)

Defendant

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: August 21, 2026

Tamara

Hall

Jud